

Court No. - 39

Case :- WRIT - C No. - 27829 of 2022

Petitioner :- Ranjeet Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Dileep Singh Yadav

Counsel for Respondent :- CSC

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

Learned counsel for the petitioner prays for and is granted permission to make service of the writ petition upon the counsel appearing for the respondent Nos.2 & 3.

Put up this matter as fresh on 28.09.2022.

Order Date :- 20.9.2022

Himanshu

Court No. - 39

Case :- WRIT - C No. - 27829 of 2022

Petitioner :- Ranjeet Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Dileep Singh Yadav

Counsel for Respondent :- CSC

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

Sri Madan Mohan Chaurasiya learned counsel has put in appearance on behalf of the respondent Nigam.

The petitioner is aggrieved by the action of the respondent in enhancement of the electricity load from 1KV to 3KV for the domestic connection sanctioned in the name of the petitioner. The contention is that the information of increase in load had been received by the petitioner on 03.02.2020 and since then he is trying to get the issue resolved by approaching the Executive Engineer concerned but the competent authority has not considered the request of the petitioner for correction in the domestic connection load which has caused financial burden upon the petitioner.

Considering the said issue we made an enquiry from the counsel appearing for the respondent as to whether there is any provision under the Electricity Act' 2003 which enables the competent authority to increase the electricity load on its own based on the electricity consumption of the consumer.

Learned counsel for the respondent prays for and is granted two weeks time to seek instruction and bring the basis of the decision of the competent authority for enhancement of the load and the legal provision pertaining thereto.

Put up this matter on 03.11.2022 as fresh.

Order Date :- 11.10.2022

Himanshu

Court No. - 39

Case :- WRIT - C No. - 27829 of 2022

Petitioner :- Ranjeet Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Dileep Singh Yadav

Counsel for Respondent :- CSC

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

List this matter on 18.11.2022 as fresh, showing the name of Sri Madan Mohan Chaurasiya as counsel for the side of the respondent.

Order Date :- 10.11.2022

Brijesh

Court No. - 39

Case :- WRIT - C No. - 27829 of 2022

Petitioner :- Ranjeet Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Dileep Singh Yadav

Counsel for Respondent :- CSC, Madan Mohan Chaurasia

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

No one has put in appearance on behalf of petitioner to press this writ petition.

Sri Madan Mohan Chaurasia, learned Advocate has received notice on behalf of respondents no. 2 and 3.

As prayed, put up this matter as fresh on 03.12.2022 to enable him to complete his instructions.

Order Date :- 18.11.2022

sailash

Court No. - 39

Case :- WRIT - C No. - 27829 of 2022

Petitioner :- Ranjeet Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Dileep Singh Yadav

Counsel for Respondent :- CSC, Madan Mohan Chaurasia

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vipin Chandra Dixit, J.

Case is called out.

Sri Madan Mohan Chaurasia, learned Advocate for the respondent is present. However, no one is present on behalf of the petitioner.

Put up this case as fresh on 13.12.2022.

In the meantime, Sri Madan Mohan Chaurasia, learned Advocate shall complete his instructions and place the written instructions before this Court by the next date fixed.

Order Date :- 3.12.2022

P Kesari

Court No. - 39

Case :- WRIT - C No. - 27829 of 2022

Petitioner :- Ranjeet Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Dileep Singh Yadav

Counsel for Respondent :- CSC, Madan Mohan Chaurasisa

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Ajit Singh, J.

Sri Madan Mohan Chaurasiya learned Advocate has put in appearance on behalf of respondent-department.

The dispute is about the computation of electricity bill and increase of load by the respondent department on its own without giving any notice or opportunity to the petitioner.

The remedy before the petitioner is to approach respondent no. 2 namely the Executive Engineer, Vidyut Vitran Khand, Kannauj by filing afresh application/objection invoking the provisions of Clause 6.5 of the U.P. Electricity Supply Code, 2005.

For the aforesaid, we **dispose of** the present writ petition with the observation that the petitioner shall file afresh application invoking the provisions of clause 6.5 of the U.P. Electricity Supply Code, 2005 before the respondent no. 2 namely the Executive Engineer, Vidyut Vitran Khand, Kannauj, raising all his grievances within a period of two weeks from today along with the copy of this order.

In case, such an objection/application is filed within the time given above, the Executive Engineer concerned shall be under obligation to take an expeditious decision, in accordance with law, dealing with all points of objection of the petitioner, preferably, within a period of four weeks from the date of receipt of the objection.

For a period of two months or till the decision is taken by the Executive Engineer concerned, whichever is earlier, no coercive measure shall be taken against the petitioner.

In case of default of filing application/objection within the time given above, it is open for the respondents to proceed against the petitioners, in accordance with law.

Order Date :- 13.12.2022

Brijesh